

Ashok Kumar v. Managing Director, Paschimanchal Vidyut Vitaran Nigam Ltd.

Allahabad High Court · Division Bench · 27 February 2018 · WRIT - C No. - 7638 of 2018 · **Writ dismissed; petitioner relegated to Consumer Forum under clause 7.10.**

HEADNOTE

A writ challenging the licensee's rejection of a bill-correctness objection is not entertained where clause 7.10 of the Electricity Supply Code, 2005 affords a statutory remedy before the Electricity Consumer Redressal Forum. The consumer may pursue that forum if so advised.

FACTUAL SUMMARY

Ashok Kumar filed a writ petition in the Allahabad High Court challenging an order of Paschimanchal Vidyut Vitaran Nigam Ltd. that had rejected his objection to the correctness of an electricity bill. He asked the Court to interfere with that rejection. The petition came before a Division Bench of Krishna Murari and Ajay Bhanot, JJ. The dispute concerned bill correctness after the licensee's objection-disposal order, with a statutory consumer grievance forum available under the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

forum for billing grievances

HOLDING

Where the licensee's order rejecting a consumer's objection to bill correctness is challenged in writ, the High Court will not entertain the petition because clause 7.10 of the Electricity Supply Code, 2005 provides a statutory remedy before the Electricity Consumer Redressal Forum; the writ is dismissed with liberty to avail that forum. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND THE ORDER REJECTING THE PETITIONER'S OBJECTION

Writ declined solely for the clause 7.10 forum; billing merits not examined. ¶ 1